

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 561A of the Code of Criminal Procedure.

-And-

In the matter of:

Abdus Salam and others

.... Accused-Petitioners

-Versus-

The State

.... Opposite Party

Mrs. Josna Akther, Advocate

.... For the accused-Petitioners.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 31st January, 2024

This application under Section 561A of the Code of Criminal Procedure at the instance of 4 accused persons is directed against the judgment and order dated 09.03.2023

passed by the learned Additional Sessions Judge, 3rd Court, Sylhet in Criminal Revision No.111 of 2022 rejecting the Criminal Revision and affirming the judgment and order dated 06.04.2022 passed by the learned Chief Judicial Magistrate, Sylhet in Jokigonj Police Station Case No.24 dated 21.11.2019 corresponding to G.R. Case No.271 of 2019 under Sections 342/323/506/114 of the Penal Code rejecting the application for recalling the prosecution witnesses for cross examination.

Ms. Joshna Akther, learned Advocate for the petitioners submits that the informant of above case and the prosecution witnesses had compromised the case with the petitioners accused persons and on the basis of above compromise the informant submitted a petition under Section 540 of the Code of Criminal Procedure on 06.03.20 for recall of PW1, PW2, PW3, PW4, PW5 and PW6 for cross examination. The learned Chief Judicial Magistrate rejected above petition. Challenging the legality and propriety of above order the petitioners preferred Criminal Revision No.111 of 2022 to the Session Judge, Sylhet which was heard by the learned Additional

Session Judge, 3rd Court, Sylhet who erroneously rejected the same.

The learned Advocate submits that above case under Sections 342/323/506/114 of the Penal Code was instituted due to misunderstanding between the informant and the accused persons and on the basis of mediation by the local leaders and elders they peacefully compromised the matter and submitted a petition for dismissal of the case on the basis of above compromise. But the learned Judicial Magistrate did not dispose of above petition by passing an appropriate order.

As such the petitioners submitted another petition under Section 540 of Code of Criminal Prosecution for recall of PW1, PW2, PW3, PW4, PW5 and PW6 which was rejected by the learned Chief Judicial Magistrate and most illegally upheld by the learned Additional Session Judge which is not tenable in law.

Ms. Farhana Afroze Runa, learned Assistant Attorney General for the State submits that the learned Chief Judicial Magistrate should have disposed of the petition submitted by the informant for dismissal of the case since the matter has

been compromised between the parties amicably. The learned Assistant Attorney General further submits that there was no allegation of causing of grievous hurt by the petitioners and allegation under Section 506 of the Penal Code was compoundable. Similarly and allegations under Sections 325/114/342 of the Penal Code was also compoundable. Since the offences brought against the petitioners were compoundable and the prosecution witnesses amicably compromised the matter with the informant the learned Judicial Magistrate should have allowed the petition for recall

07 Prosecution Witnesses.

We have heard the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the record that the informant submitted a petition on 06.03.2022 for dismissal of the case and acquittal of the accused persons stating that the case has been compromised between the parties locally since the filing of this case was an outcome of misunderstanding. The learned Judicial Magistrate instead of passing an appropriate order on above petition kept the same with the record and proceeded

with the trial of the case. But the petitioners did not come before us challenging the legality of above inaction of the learned Magistrate in disposing of above petition.

The petitioners submitted a petition for recall of PW1-PW6 for cross examination. The learned Advocate for the petitioners submits that the informant and above prosecution witness are ready to come to the Court for being subjected to further cross examination and the informant did not have any objection against above petition.

On consideration of above facts and circumstances of the case and materials on record we hold that the ends of justice will be met and further delay in the disposal of the case be avoided if a direction is issued upon the learned Chief Judicial Magistrate to recall PW1-PW6 for cross examination within 15 days from the date receipt of this order and conclude the trial of the case expeditiously without granting any adjournment at the instance of the accused.

In the result, the impugned judgment and order dated 09.03.2023 passed by the learned Additional Sessions Judge, 3rd Court, Sylhet in Criminal Revision No.111 of 2022 is set

aside and learned Chief Judicial Magistrate is directed to recall PW1-PW6 for cross examination within 15 days from the date of receipt of this order and proceed to conclude the trial of the case expeditiously without granting any adjournment at the instance of the accused.

With above direction this application under Section 561A of the Code of Criminal Procedure is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICE